

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4556**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
by amending section 1279g (MCL 380.1279g), as amended by 2025 PA
57.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1279g. (1) The board of a school district or board of
2 directors of a public school academy shall comply with this section
3 and shall administer the Michigan merit examination to pupils in
4 grade 11, and to pupils in grade 12 who did not take the complete
5 Michigan merit examination in grade 11, as provided in this
6 section. **The Michigan merit examination consists of a college**
7 **entrance test, an optional work skills test, and the summative**
8 **assessment known as the Michigan student test of educational**



1 **progress (M-STEP) .**

2 (2) For the purposes of this section, the department of
3 technology, management, and budget shall contract with 1 or more
4 providers to develop, supply, and score the Michigan merit
5 examination. The Michigan merit examination shall consist of all of
6 the following:

7 (a) Assessment instruments that measure English language arts,
8 mathematics, reading, and science and are used by colleges and
9 universities in this state for entrance or placement purposes. ~~This~~
10 ~~shall include a writing component in which the pupil produces an~~
11 ~~extended writing sample. The Michigan merit examination shall not~~
12 ~~require any other extended writing sample.~~ **In selecting assessment**
13 **instruments to fulfill the requirements of this subdivision, the**
14 **department may consider the degree to which those assessment**
15 **instruments are aligned with this state's content standards.**

16 (b) One or more tests from 1 or more test developers that
17 assess a pupil's ability to apply at least reading and mathematics
18 skills in a manner that is intended to allow employers to use the
19 results in making employment decisions. The department of
20 technology, management, and budget and the superintendent of public
21 instruction shall ensure that any test or tests selected under this
22 subdivision have all the components necessary to allow a pupil to
23 be eligible to receive the results of a nationally recognized
24 evaluation of workforce readiness if the pupil's test performance
25 is adequate. Beginning with the 2026-2027 school year, a pupil may
26 elect not to take a test described in this subdivision through a
27 waiver that is developed by the department, made available on the
28 department's website, and both signed and submitted to the pupil's
29 school district, intermediate school district, or public school



academy by the pupil's parent or legal guardian by not later than February 28 of the school year in which the test will be administered. The department shall consult with an individual who represents business in this state, an individual who represents manufacturing in this state, and an individual who represents skilled trades organizations in this state to develop an informational letter about the purpose and benefits of the workforce readiness assessment. A school district, intermediate school district, or public school academy shall ensure that the informational letter is provided to all pupils described in subsection (1) and the parents or legal guardians of those pupils by not later than December 31 of the school year in which the test will be administered.

(c) A social studies component.

(d) Any other component that is necessary to obtain the approval of the United States Department of Education to use the Michigan merit examination for the purposes of the no child left behind act of 2001, Public Law 107-110, or the every student succeeds act, Public Law 114-95.

(3) In addition to all other requirements of this section, all of the following apply to the Michigan merit examination:

(a) The department of technology, management, and budget and the superintendent of public instruction shall ensure that any contractor used for scoring the Michigan merit examination supplies an individual report for each pupil that will identify for the pupil's parents or legal guardians and teachers whether the pupil met expectations or failed to meet expectations for each standard, to allow the pupil's parents or legal guardians and teachers to assess and remedy problems before the pupil moves to the next



1 grade.

2 (b) The department of technology, management, and budget and
3 the superintendent of public instruction shall ensure that any
4 contractor used for scoring, developing, or processing the Michigan
5 merit examination meets quality management standards commonly used
6 in the assessment industry, including at least meeting level 2 of
7 the capability maturity model developed by the Software Engineering
8 Institute of Carnegie Mellon University for the first year the
9 Michigan merit examination is offered to all grade 11 pupils and at
10 least meeting level 3 of the capability maturity model for
11 subsequent years.

12 (c) The department of technology, management, and budget and
13 the superintendent of public instruction shall ensure that any
14 contract for scoring, administering, or developing the Michigan
15 merit examination includes specific deadlines for all steps of the
16 assessment process, including, but not limited to, deadlines for
17 the correct testing materials to be supplied to schools and for the
18 correct results to be returned to schools, and includes penalties
19 for noncompliance with these deadlines.

20 (d) The superintendent of public instruction shall ensure that
21 the Michigan merit examination meets all of the following:

22 (i) Is designed to test pupils on grade level content
23 expectations or course content expectations **and this state's**
24 **content standards**, as appropriate, in all subjects tested.

25 (ii) Complies with requirements of the no child left behind act
26 of 2001, Public Law 107-110, or the every student succeeds act,
27 Public Law 114-95, as applicable.

28 (iii) Is consistent with the code of fair testing practices in
29 education prepared by the ~~joint committee~~ **Joint Committee** on



~~testing practices~~ **Testing Practices** of the American Psychological Association.

(iv) Is factually accurate. If the superintendent of public instruction determines that a question is not factually accurate and should be excluded from scoring, the state board and the superintendent of public instruction shall ensure that the question is excluded from scoring.

(4) A school district or public school academy that operates a high school shall include **the number of school days a pupil was in attendance at school each school year during high school and the total number of school days in session for each of those school years** on ~~each the~~ pupil's high school transcript. ~~all of the following:~~

~~(a) For each high school graduate who has completed the Michigan merit examination under this section, the pupil's sealed score on each subject area component of the Michigan merit examination.~~

~~(b) The number of school days the pupil was in attendance at school each school year during high school and the total number of school days in session for each of those school years.~~

(5) The superintendent of public instruction shall work with the provider or providers of the Michigan merit examination to produce Michigan merit examination subject area scores for each pupil participating in the Michigan merit examination. ~~including sealing and merging of test items for the different subject area components.~~ **To the extent that the department determines that additional test items beyond those included in the college entrance component of the Michigan merit examination are required in a particular subject area, the department shall ensure that all test**



1 **items in that subject area are scaled and merged for the purposes**
 2 **of producing a Michigan merit examination subject area score.** The
 3 superintendent of public instruction shall design and distribute to
 4 school districts, public school academies, intermediate school
 5 districts, and nonpublic schools a simple and concise document that
 6 describes the scoring for each subject area and indicates the
 7 scaled score ranges for each subject area.

8 (6) The Michigan merit examination ~~shall~~**must** be administered
 9 ~~each year after March 1 and before June 1 to pupils in grade 11. in~~
 10 **each school district and public school academy during the last 12**
 11 **weeks of the school district's or public school academy's school**
 12 **year.** The superintendent of public instruction shall ensure that
 13 the Michigan merit examination is scored and the scores are
 14 returned to pupils, the pupils' parents or legal guardians, and
 15 schools not later than the beginning of the pupil's first semester
 16 of grade 12. The returned scores ~~shall~~**must** indicate at least the
 17 pupil's scaled score for each subject area component and the range
 18 of scaled scores for each subject area. In reporting the scores to
 19 pupils, parents, legal guardians, and schools, the superintendent
 20 of public instruction shall provide standards-specific, meaningful,
 21 and timely feedback on the pupil's performance on the Michigan
 22 merit examination.

23 (7) A school district or public school academy shall
 24 administer the complete Michigan merit examination to a pupil only
 25 once and shall not administer the complete Michigan merit
 26 examination to the same pupil more than once. If a pupil does not
 27 take the complete Michigan merit examination in grade 11, the
 28 school district or public school academy shall administer the
 29 complete Michigan merit examination to the pupil in grade 12. If a



pupil chooses to retake the college entrance examination component of the Michigan merit examination, as described in subsection (2)(a), the pupil may do so through the provider of the college entrance examination component and the cost of the retake is the responsibility of the pupil unless all of the following are met:

(a) The pupil has taken the complete Michigan merit examination.

(b) The pupil meets the income eligibility criteria for free breakfast, lunch, or milk, as determined under the Richard B. Russell national school lunch act, 42 USC 1751 to 1769j.

(c) The pupil has applied to the provider of the college entrance examination component for a scholarship or fee waiver to cover the cost of the retake and that application has been denied.

(d) After taking the complete Michigan merit examination, the pupil has not already received a free retake of the college entrance examination component paid for either by this state or through a scholarship or fee waiver by the provider.

(8) The superintendent of public instruction shall ensure that the length of the Michigan merit examination and the combined total time necessary to administer all of the components of the Michigan merit examination are the shortest possible that will still maintain the degree of reliability and validity of the Michigan merit examination results determined necessary by the superintendent of public instruction. The superintendent of public instruction shall ensure that the maximum total combined length of time that schools are required to set aside for pupils to answer all test questions on the Michigan merit examination does not exceed 8 hours if the superintendent of public instruction determines that sufficient alignment to applicable Michigan merit



1 curriculum content standards can be achieved within that time
2 limit.

3 (9) A school district or public school academy shall provide
4 accommodations to a pupil with disabilities for the Michigan merit
5 examination, as provided under section 504 of title V of the
6 rehabilitation act of 1973, 29 USC 794; part A of subchapter II of
7 the Americans with disabilities act of 1990, 42 USC 12131 to 12134;
8 the individuals with disabilities education act amendments of 1997,
9 Public Law 105-17; and the implementing regulations for those
10 statutes. The provider or providers of the Michigan merit
11 examination and the superintendent of public instruction shall
12 mutually agree on the accommodations to be provided under this
13 subsection.

14 (10) To the greatest extent possible, the Michigan merit
15 examination ~~shall~~**must** be based on grade level content expectations
16 or course content expectations **and this state's content standards**,
17 as appropriate. ~~Not later than July 1, 2008, the department shall~~
18 ~~identify specific grade level content expectations to be taught~~
19 ~~before and after the middle of grade 11, so that teachers will know~~
20 ~~what content will be covered within the Michigan merit examination.~~

21 (11) A child who is a student in a nonpublic school or home
22 school may take the Michigan merit examination under this section.
23 To take the Michigan merit examination, a child who is a student in
24 a home school shall contact the school district in which the child
25 resides, and that school district shall administer the Michigan
26 merit examination, or the child may take the Michigan merit
27 examination at a nonpublic school if allowed by the nonpublic
28 school. Upon request from a nonpublic school, the superintendent of
29 public instruction shall direct the provider or providers to supply



1 the Michigan merit examination to the nonpublic school and the
2 nonpublic school may administer the Michigan merit examination. If
3 a school district administers the Michigan merit examination under
4 this subsection to a child who is not enrolled in the school
5 district, the scores for that child are not considered for any
6 purpose to be scores of a pupil of the school district.

7 ~~(12) In contracting under subsection (2), the department of~~
8 ~~technology, management, and budget shall consider a contractor that~~
9 ~~provides electronically scored essays with the ability to score~~
10 ~~constructed response feedback in multiple languages and provide~~
11 ~~ongoing instruction and feedback.~~

12 **(12)** ~~(13)~~ The purpose of the Michigan merit examination is to
13 assess pupil performance in mathematics, science, social studies,
14 and English language arts for the purpose of improving academic
15 achievement and establishing a statewide standard of competency.
16 The assessment under this section provides a common measure of data
17 that will contribute to the improvement of Michigan schools'
18 curriculum and instruction by encouraging alignment with Michigan's
19 curriculum framework standards and promotes pupil participation in
20 higher level mathematics, science, social studies, and English
21 language arts courses. These standards are based on the
22 expectations of what pupils should learn through high school and
23 are aligned with national standards.

24 **(13)** ~~(14)~~ In addition to the other requirements of this
25 section and the requirements of 1970 PA 38, MCL 388.1081 to
26 388.1086, the superintendent of public instruction shall ensure
27 that the Michigan merit examination social studies component and
28 the M-STEP and any successor state assessment for social studies,
29 as appropriate, include questions related to the learning



objectives in the state board recommended model core academic curriculum standards concerning genocide, including, but not limited to, the Holocaust and the Armenian Genocide.

(14) For a pupil enrolled in an early middle college program, other than an early middle college operated as a shared educational entity or a specialized shared educational entity, if the pupil receives at least 50% of the pupil's instruction at the high school while in grade 11, the Michigan merit examination must be administered to the pupil at the high school at which the pupil receives high school instruction, and the department shall include the pupil's scores on the Michigan merit examination in the scores for that high school for all purposes for which a school's or district's results are reported. The department shall allow the early middle college program to use a 5-year graduation rate for determining adequate yearly progress. As used in this subsection, "early middle college" means a department-approved 5-year program of study that works closely with postsecondary partners to provide pupils with an opportunity earn a high school diploma and 1 or more of the following:

(a) 60 transferable college credits.

(b) An associate degree.

(c) A professional certification. As used in this subdivision, "professional certification" means any certificate or industry-recognized credential that a pupil prepared for by taking coursework provided by an eligible postsecondary institution.

(d) The Michigan Early Middle College Association technical certificate.

(e) Participation in a registered apprenticeship.

(15) As used in this section:



(a) "Armenian Genocide", "genocide", and "Holocaust" mean those terms as defined in section 1168.

(b) "English language arts" means reading and writing.

(c) "Social studies" means United States history, world history, world geography, economics, and American government.

Enacting section 1. This amendatory act takes effect June 30, 2026.